

E. LIABILITY OF CHRISTINE MARIE KULLE, NP

In opposition, the Pollard Defendants separately contend that Plaintiffs' evidence does not demonstrate that Kulle is liable for fraud. Plaintiffs' evidence establishes that Kulle was not physically working in Dr. Pollard's office on May 5, 2023, and the evidence does not demonstrate that Kulle knew of a material abnormality and intentionally concealed the same. (Declaration of Monica, ¶ 6; Declaration of Haberkorn, Exh. I [Kulle's Responses to Special Interrogatories], pp. 2:19-3:3, 6:25-7:20). The motion is denied as to Defendant Kulle.

IV. CONCLUSION

Based on the foregoing, Plaintiffs' motion for leave to amend is DENIED as to defendant Christine Marie Kulle.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the breach of fiduciary duty causes of action is DENIED.

Plaintiffs' motion for leave to amend to add allegations supporting a punitive damages claim for the medical battery and intentional misrepresentation cause of action against defendants Angela Michelle Pollard, M.D., Angela M. Pollard MD Inc., Above Parr Women's Center, and Pollard Wellness, Inc. is GRANTED.

Plaintiffs shall file the proposed third amended complaint in accordance with ten (10) days of this order.

The Court will prepare the formal Order.

Calendar Line # 8

Case Name Yevgeniy Tilman et al vs Ruby Dobry et al

Case No. 25CV477274

Motion for Protective Order (Line # 8)

I. BACKGROUND

This case arises from a fraud and breach of contracts claim, Plaintiffs Los Gatos Therapy Center, WK Medical Group, Yevgeniy Tilman, and Bruce Melvin Wermuth (collectively "Plaintiffs") filed a Complaint against Defendants Ruby Dobry, individually, and as the Special Administrator of the Estate of Yuriy Dobry (collectively "Defendants") on October 10, 2025. On April 20, 2026, Plaintiffs filed a First Amended Complaint ("FAC") alleging six causes of actions: (1) fraud- intentional misrepresentation; (2) fraud- negligent misrepresentation; (3) fraud- concealment; (4) declaratory relief; (5) breach of contract; and (6) breach of contract. Prior to the Plaintiffs filing its FAC, Defendants filed an Anti-SLAPP and Motion to Strike. Those motions were rendered moot upon Plaintiffs' filing of the FAC.

On December 17, 2025, Defendants filed this present motion for protective order and stay of discovery. The motion included a notice of motion, motion, and Declaration of Ruby Dobry (totaling 5 pages).

II. PROCEDURAL VIOLATION

The Defendants' motion for protective order was not accompanied by a proof of service. Code of Civil Procedure section 1005 requires that a moving party must provide proof of service of the motion. Rules of Court, rule 3.1300(c) provides that a proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing. Given this procedural violation and the absence of an opposition motion or waiver of notice, the Court cannot consider the substance of this motion.

Defendants' also request for a stay on all discovery pending resolution of Defendants' motion to strike the Complaint in its entirety. The Court notes that this issue is moot as Defendants' motion to strike filed on December 12, 2025 and its anti-SLAPP motion filed on January 21, 2026 was rendered moot upon the Plaintiffs' filing of the FAC on April 20, 2026.

III. CONCLUSION

Based on the foregoing, the motion for protective order and stay on discovery is DENIED. The Court will prepare the formal Order.